

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 24-19

PELOTON INTERACTIVE, INC.,

COMPLAINANT,

v.

FLEXPORT INTERNATIONAL LLC

RESPONDENT.

**COMPLAINANT PELOTON INTERACTIVE, INC.'S
MOTION FOR CONFIDENTIAL TREATMENT**

Complainant Peloton Interactive, Inc. (“Peloton”) moves pursuant to Rules 5(b) and 69 of the Federal Maritime Commission’s Rules of Practice and Procedure and the May 13, 2024 Initial Order in this proceeding (“Initial Order”) for confidential treatment of Exhibit B and Exhibit C to Respondent’s Answer (the “Exhibits”).

Respondent filed its Answer to Peloton’s Verified Amended Complaint on October 29, 2024. The Answer references and includes multiple documents as exhibits, among them the Exhibits referenced above. Notwithstanding the explicit confidentiality provisions contained in the Exhibits, Respondent did not request or designate for confidential treatment any portion of the Answer or its exhibits. Given the Exhibits contain commercially sensitive and confidential information, the portions of the Exhibits which include that information should have been designated as confidential and protected from public disclosure. Since it was not, Peloton now

respectfully requests that the commercially sensitive portions of the Exhibits be designated as confidential, the unredacted versions of the Exhibits be immediately removed from the public record, and Respondent be required to file both confidential and public versions of the Exhibits consistent with the Initial Order.

Pursuant to Commission Rule 5(b), a motion for confidential treatment should specify the information in a filing for which protection is sought and show good cause by demonstrating “the information is a trade secret or other confidential research, development, or commercial information pursuant to § 502.141(j)(1)(vii).” 46 C.F.R. § 502.5(b). Here, the Exhibits are two confidential master services agreements between Peloton and Flexport. Good cause exists for protection of the information contained therein. The Exhibits contain commercially sensitive information related to the business dealings of the Parties, including but not limited to rates, charges, and key performance indicators (KPIs). Both Exhibits also include personally identifiable information (PII) for a number of Complainant employees, Respondent employees, and third parties. Attached to this motion for confidential treatment are updated versions of the Exhibit with the commercially sensitive information highlighted.

Significantly, section 4(a) of both Exhibit B and Exhibit C specifically state “Confidential Information includes this Agreement, the terms and conditions of this Agreement, and information exchanged in the course of negotiating this Agreement.” Respondent’s Verified Answer, Doc. No. 16, Exhibit B and Exhibit C. Despite the definition of “Confidential Information” expressly including the terms and conditions of each master services agreement, Flexport did not seek permission or even notify Peloton of its intent to make the Exhibits public prior to filing it Answer. Each master services agreement also provides that the remedy for breach of confidentiality is “an injunction or similar equitable relief.” *Id.* By publicly filing the Exhibits without Peloton’s

knowledge or permission, Flexport clearly breached the confidentiality provisions of the master services agreements.

Based on the commercially sensitive nature of the information contained in Exhibits B and C and the Parties clear intent that the contents of the Exhibits be treated as confidential, the confidential portions of the Exhibits should have been designated as confidential by Flexport when filing its Answer. Fortunately, Peloton notes that while the Answer is publicly available in the FMC Reading Room, the Exhibits are not currently published on the website and the confidential information can still be protected. Peloton requests that the Presiding Officer grant Peloton's motion for confidential treatment, designate the commercially sensitive information in the Exhibits as confidential, remove the unredacted versions of the Exhibits from the public record, and require Respondent to file confidential and public versions of the Exhibits with the Commission.

Meet and Confer Certification

Peloton has conferred with Respondent regarding its intent to file this motion for confidential treatment. It raised the issue on October 31, 2024, during the initial call between the parties on the joint status report and Respondent stated it would consider the request. Then, with no response received, Complainant inquired again by email on November 6, 2024 and again received no response.

CONCLUSION

For the foregoing reasons, Peloton respectfully requests that the Presiding Officer grants Peloton's motion for confidential treatment, the unredacted versions of Exhibit B and Exhibit C to Flexport's Answer be removed from the public record and be designated as confidential, and that Flexport be required to file updated confidential and public versions of the Exhibits.

Dated: November 7, 2024
Washington, D.C.

Respectfully Submitted,

HOLLAND AND KNIGHT LLP

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CERTIFICATE OF SERVICE

The undersigned hereby certifies that on the execution date which appears below, the undersigned served the attached document on counsel at the following email addresses:

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Executed: November 7, 2024

/s/ Carrol P. Hand